IN THE NATIONAL COMPANY LAW TRIBUNAL
AMARAVATI BENCH
(*Through Hybrid Mode)*

Item No.1
CA(CAA)/1/230/AMR/2025

IN THE MATTER OF:
M/s. RVR Marine Products Ltd (Transferor Company) with
M/s. Sun Bitess Pvt Ltd (Transferee Company) ... Applicants

Under Section: 230 to 232 of Companies Act, 2013

Order delivered on 27.03.2025

CORAM:
SHRI UMESH KUMAR SHUKLA **SHRI KISHORE VEMULAPALLI**
HON'BLE MEMBER (TECHNICAL) **HON'BLE MEMBER (JUDICIAL)**

PRESENT:
In CP
For the Applicants : Mr. Vijaya Kumar, PCS

ORDER

During the course of hearing, the Bench raised the following queries:

1. *Applicability of regulators like Food Safety and Standards Authority of India (FSSAI), Directorate General of Foreign Trade (DGFT), Competition Commission of India (CCI) or any other regulator applicable to the Applicant Companies.*
2. *Whether the Memorandum of Association provide for merger/ amalgamation in both the Applicant Companies?*
3. *Reconciliation of list of the Creditors with the Audited Balance Sheet of the Applicant Companies.*

PCS representing the Applicant Companies sought two weeks' time to file clarification Affidavit with regard to the aforesaid issues along with the consent Affidavits from the Secured and Unsecured Creditors of the Transferee Company. Time prayed for is granted. List the matter on 08.05.2025 for further consideration.

Sd/- **Sd/-**
(UMESH KUMAR SHUKLA) **(KISHORE VEMULAPALLI)**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**